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CONSULTANT LIABILITY APPLICATION

Applicant's Name: Tobe Energy

Mailing Address: 1820 SE 22nd St
Oklahoma City, OK 73129

Location Address:

Agency Name:
Agent No.:
Address:
E-mail:
Phone No.:

PROPOSED EFFECTIVE DATE: From 08/01/2025 **To** 08/01/2026 **12:01 A.M., Standard Time at the address of the Applicant**

ANSWER ALL QUESTIONS—IF THEY DO NOT APPLY, INDICATE "NOT APPLICABLE" (N/A)

Applicant is: ☐ Individual ☐ Corporation ☐ Partnership ☐ Joint Venture
☐ Limited Liability Company ☐ Other (Specify) C Corp

Website Address: https://tobe.energy/

E-mail Address: lala.jose@tobe.energy **Phone No.:**

Limits Of Liability and Deductible Requested:

General Aggregate (other than Products/Completed Operations)		$ 2,000,000
Products & Completed Operations Aggregate		$ 2,000,000
Personal & Advertising Injury (any one person or organization)		$ 1,000,000
Each Occurrence		$ 1,000,000
Damage To Premises Rented To You (any one premise)		$ 100,000
Medical Expense (any one person)		$ 10,000
Errors and Omissions Coverage (Limits must be equal to General Liability Limits)	Each Claim Aggregate	$ 1,000,000 $ 2,000,000
Sexual and/or Physical Abuse Coverage		$ 25,000/$ 50,000 (included)
Other Coverage, Restrictions and/or Endorsements:		$
Deductible		$

1. **Describe all professional or business services performed by applicant:** Tobe Energy builds and operates breakthrough hydrogen systems using a proprietary electrolysis p
Our technology produces green hydrogen at a cost competitive with fossil-fuel-based hydrogen and

2. **Number of years in business:** 0

3. **List all states in which applicant performs operations:** OK

4. **Number of employees: Total:** 7 **Full Time:** 7 **Part Time:** _____

5. **Total annual: Payroll: $** 680,000 **Gross Receipts: $** 0

6. **Schedule Of Hazards:**

Loc. No.	Classification Description	Class. Code	Exposure	Premium Basis (s) Gross Sales (p) Payroll (a) Area (c) Total Cost (t) Other
	Hydrogen Electrolyzers			s

7. **List applicant's five largest clients (projects), service provided and cost of service:**

Client (Project) Name:	Services Provided	Cost of Service

8. **Provide a breakdown of the applicant's consulting services including type of consulting activity and percent of gross receipts derived from each type of consulting activity:** _____

9. **Identify which of the following categories the applicant offers consulting services for:**

- ☐ Animals
- ☐ Chemicals
- ☐ Computer/Information Technology
- ☐ Construction
- ☐ Engineers or Architects
- ☐ Environmental
- ☐ Financial/Investment
- ☐ Gas or Oil
- ☐ Irrigation
- ☐ Legal
- ☐ Management/Business
- ☐ Marketing
- ☐ Medical
- ☐ Nuclear
- ☐ Nutrition
- ☐ Political
- ☐ Public Relations
- ☐ Range Management
- ☐ Real Estate
- ☐ Regulatory
- ☐ Safety
- ☐ Security
- ☐ Social Media
- ☐ Social Services
- ☐ Other: _____

10. Does applicant provide the following services:

Construction Project Manager ..... ☐ Yes ☑ No
Expert Witness ..... ☐ Yes ☑ No
Inspection Company ..... ☐ Yes ☑ No
Real Estate Agent ..... ☐ Yes ☑ No
Tutor ..... ☐ Yes ☑ No

11. Does applicant use a written contract? ..... ☐ Yes ☑ No

If yes, attach copy of contract.

12. Does applicant subcontract work to others? ..... ☐ Yes ☑ No

13. During the past three years, has the applicant's name been changed or has the applicant purchased, merged or consolidated with any other business? ..... ☐ Yes ☑ No

If yes, explain: _____

14. Is applicant involved in any business or profession other than what is described above? ..... ☐ Yes ☑ No

If yes, describe and provide estimated receipts: _____

15. Is applicant controlled by, owned by, or associated with any other firm, corporation or company? ..... ☐ Yes ☑ No

If yes, describe: _____

16. Does applicant assist in negotiating or have any authority to alter or enter into contractual relationships on any client's behalf? ..... ☐ Yes ☑ No

If yes, explain: _____

17. Does applicant have Professional Liability coverage in force? ..... ☐ Yes ☑ No

If yes: With whom? _____
Effective dates: _____
Limits: _____

18. List professional associations to which the applicant belongs: _____

19. During the past three years, has any company canceled, nonrenewed, declined or refused similar insurance to the applicant? (Not applicable in Missouri) ..... ☐ Yes ☑ No

If yes, explain: _____

20. Does risk engage in the generation of power, other than emergency back-up power, for their own use or sale to power companies? ..... ☐ Yes ☑ No

If yes, describe: _____

21. Additional Insured Information:

Name	Address	Interest
Heritage Industrial, LLC.,	PO Box 2276Oklahoma City, OK 7310	Landlord

22. Prior Carrier Information:

	Year:	Year:	Year:	Year:	Year:
Carrier					
Policy No.					
Coverage					
Occurrence or Claims Made					
Total Premium					

23. Loss History:

Indicate all claims or losses (regardless of fault and whether or not insured) or occurrences that may give rise to claims for the prior five years. ☐ Check if no losses in the last five years.

Date of Loss	Description of Loss	Amount Paid	Amount Reserved	Claim Status (Open or Closed)

24. Include the following documents with the Application:

a. Sample copies of all types of client contracts, including sub-contractor contracts.

b. Copies of all promotional or marketing materials.

This application does not bind the applicant nor the Company to complete the insurance, but it is agreed that the information contained herein shall be the basis of the contract should a policy be issued.

FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties. **(Not applicable to Oregon)**

NOTICE TO ALABAMA APPLICANTS: Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution fines or confinement in prison, or any combination thereof.

NOTICE TO COLORADO APPLICANTS: It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance, and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policy holder or claimant for the purpose of defrauding or attempting to defraud the policy holder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.

WARNING TO DISTRICT OF COLUMBIA APPLICANTS: It is a crime to provide false or misleading information to an insurer for the purpose of defrauding the insurer or any other person. Penalties include imprisonment and/or fines. In addition, an insurer may deny insurance benefits if false information materially related to a claim was provided by the applicant.

NOTICE TO FLORIDA APPLICANTS: Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.

NOTICE TO LOUISIANA APPLICANTS: Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

NOTICE TO MAINE APPLICANTS: It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

NOTICE TO MARYLAND APPLICANTS: Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

NOTICE TO MINNESOTA APPLICANTS: A person who files a claim with intent to defraud or helps commit a fraud against an insurer is guilty of a crime.

NOTICE TO OHIO APPLICANTS: Any person who, with intent to defraud or knowing that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.

NOTICE TO OKLAHOMA APPLICANTS: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.

NOTICE TO RHODE ISLAND APPLICANTS: Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

FRAUD WARNING (APPLICABLE IN VERMONT, NEBRASKA AND OREGON): Any person who intentionally presents a materially false statement in an application for insurance may be guilty of a criminal offense and subject to penalties under state law.

FRAUD WARNING (APPLICABLE IN TENNESSEE, VIRGINIA AND WASHINGTON): It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company. Penalties include imprisonment, fines, and denial of insurance benefits.

NEW YORK AUTOMOBILE FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for commercial insurance or a statement of claim for any commercial or personal insurance benefits containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, and any person who, in connection with such application or claim, knowingly makes or knowingly assists, abets, solicits or conspires with another to make a false report of the theft, destruction, damage or conversion of any motor vehicle to a law enforcement agency, the department of motor vehicles or an insurance company, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the value of the subject motor vehicle or stated claim for each violation.

NEW YORK OTHER THAN AUTOMOBILE FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation.

APPLICANT'S STATEMENT:

I have read the above application and I declare that to the best of my knowledge and belief all of the foregoing statements are true, and that these statements are offered as an inducement to us to issue the policy for which I am applying. (Kansas: This does not constitute a warranty.)

APPLICANT'S NAME AND TITLE: Colby DeWeese, Founder & CEO

APPLICANT'S SIGNATURE: _____ DATE: 7-14-2025

(Must be signed by an active owner, partner or executive officer.)

PRODUCER'S SIGNATURE: _____ DATE: _____

AGENT NAME: _____ AGENT LICENSE NUMBER: _____

(Applicable to Florida Agents Only)

IOWA LICENSED AGENT: _____

(Applicable in Iowa Only)

IMPORTANT NOTICE

As part of our underwriting procedure, a routine inquiry may be made to obtain applicable information concerning character, general reputation, personal characteristics and mode of living. Upon written request, additional information as to the nature and scope of the report, if one is made, will be provided.